

**IN THE DUBAI INTERNATIONAL ARBITRATION CENTRE  
CASE NUMBER 24007**

In the matter of

- 1) PACIFIC REAL ESTATE DEVELOPMENT**
- 2) ALTURFAH BUILDING CONSULTING LLC**
- 3) MR AYAD HASSAN ALI MOHAMMED ALHABSHI**

**AND**

- 1) BALQIS RESIDENCE FZE**
- 2) IFA HOTELS & RESORTS**

Subject

**LIST OF ERRATA TO FIRST & SECOND REPORT AND EJS COLUMN OF  
MARK PHILLIPS**

In relation to

**ARCHITECTURE**

Prepared by

**MARK PHILLIPS**

|                   |                                                          |
|-------------------|----------------------------------------------------------|
| Date:             | 11 May 2026                                              |
| Specialist field: | Architecture                                             |
| Appointed by:     | Al Tamimi & Co                                           |
| On behalf of:     | Balqis Residence and IFA Hotels & Resorts FZE            |
| Subject:          | List of Errata for Reports & EJS Column of Mark Phillips |
| File reference:   | 260511-Errata Mark Phillips.docx                         |

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| Confidential | REPORT OF        | Mark Phillips  |
|              | SPECIALIST FIELD | Architecture   |
|              | APPOINTED BY     | Al Tamimi & Co |
|              | PREPARED FOR     | Arbitration    |

## LIST OF ERRATA

| Reference / Paragraph No.                         | Current                                                                                                                                                                            | Correction                                                                                                                                                                                   |
|---------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| First report paragraph 3.1.1 (3), fourth sentence | IFA is the parent company of <b>Balis</b> to guarantee the obligations of Balqis.                                                                                                  | Typo: IFA is the parent company of <b>Balqis</b> to guarantee the obligations of Balqis.                                                                                                     |
| First report paragraph 3.1.12                     | There are email exchanges in February 2016 and March 2016 between Mr <b>Ablashi</b> and Yotel discussing the number of keys, comments on revised plans and authority requirements. | Typo: There are email exchanges in February 2016 and March 2016 between Mr <b>Alhabshi</b> and Yotel discussing the number of keys, comments on revised plans and authority requirements.    |
| First report paragraph 3.1.14, email quote        | <i>"...only before the authorities <b>Mr Albut</b> SPP will ultimately be responsible for the project before the authorities..."</i>                                               | Typo delete words: <i>"...only before the authorities <del>Mr Albut</del> SPP will ultimately be responsible for the project before the authorities."</i>                                    |
| First report paragraph 3.1.25, first sentence     | In an email exchange on or around 11 June 2017 between IFA and Mr Alhabshi wrote, ...                                                                                              | Typo amend: In an email exchange on or around 11 June 2017 <del>between</del> with IFA, <del>and</del> Mr Alhabshi wrote, ...                                                                |
| First report paragraph 3.2.2, first sentence      | I have been provided with the documents provided to the Claimants' architectural expert (Mr Austen Smith) but did not necessarily been referred to in his report.                  | Part deletion: I have been provided with the documents provided to the Claimants' architectural expert (Mr Austen Smith). <del>but did not necessarily been referred to in his report.</del> |
| First report, subtitle before                     | AAEC December <b>2015</b> Drawings                                                                                                                                                 | Correction: AAEC December <b>2016</b> Drawings                                                                                                                                               |

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| Reference / Paragraph No.                                  | Current                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Correction                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| paragraph 4.5.9                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| First report paragraph 4.7.20, third sentence              | The overall GFA in the NEB brief appears to be less <b>that</b> the overall GFA in the AAEC design.                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | Typo: The overall GFA in the NEB brief appears to be less <b>than</b> the overall GFA in the AAEC design.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| Second report Executive summary, first paragraph, page iii | Whether the later designer, NEB did or did not, have access to the earlier SPP 2017 or AAEC drawings they will in my view have likely benefitted from the detailed briefing process and the client undertaking the process for the second time. This is my view should have sped up NEB's design process in the early stages. I note that NEB still took approximately five months from their appointment in April 2018 until submitting their design to Nakheel on 18 October 2018. It then took further month for the to resubmit after their first application was rejected. | Amendment:<br><br><b><i>Disclosure Requests 14 &amp; 21 NEB Consultancy Agreement.pdf appears to show that NEB were provided with scanned pdf copies of the AAEC drawings rebadged by SPP. I do not know if they were provided with the CAD files.</i></b><br><br>Whether the later designer, NEB did or did not, have access to the earlier SPP 2017 or AAEC <b>CAD</b> drawings they will in my view have likely benefitted from <b>seeing the scanned pdf drawings, and</b> the detailed briefing process <del>and</del> of the client undertaking the process for the second time. This is my view should have sped up NEB's design process in the early stages. I note that NEB still took approximately five months from their appointment in April 2018 until submitting their design to Nakheel on 18 October 2018. It then took further month for the to resubmit after their first application was rejected. |

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| Reference / Paragraph No.      | Current                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | Correction                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
|--------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Second report paragraph 2.5.8  | Again, as per my first report, whether NEB have or have not had access to the earlier SPP 2017 or AAEC drawings they have likely benefitted from the detailed briefing process and the Client undertaking the process for the second time. This in my view should have sped up NEB's design process in the early stages. I note that NEB still took approximately five months from their appointment in April 2018 until their submission to Nakheel on October 2018 and approximately a further month to resubmit after their first application was rejected. | Amendment:<br><br><i>Disclosure Requests 14 &amp; 21 NEB Consultancy Agreement.pdf</i> appears to show that NEB were provided with scanned pdf copies of the AAEC drawings rebadged by SPP. I do not know if they were provided the CAD drawings. <del>Again, as per my first report, whether</del> Whether NEB have or have not had access to the earlier SPP 2017 or AAEC CAD drawings they have likely benefitted from seeing the scanned pdf drawings, and the detailed briefing process and of the Client undertaking the process for the second time. This in my view should have sped up NEB's design process in the early stages. I note that NEB still took approximately five months from their appointment in April 2018 until their submission to Nakheel on October 2018 and approximately a further month to resubmit after their first application was rejected. |
| Second report paragraph 2.14.6 | In my view, even if AAEC did limited work 2017, an eight-month period (April 2016 to December 2016) should have been sufficient to have developed the 2015 SPP scheme to incorporate the increase in rooms 227 to 300 for submission to Nakheel for a variation to an approved design.                                                                                                                                                                                                                                                                         | Typo: In my view, even if AAEC did limited work in 2017, an eight-month period (April 2016 to December 2016) should have been sufficient to have developed the 2015 SPP scheme to incorporate the increase in rooms 227 to 300 for submission to Nakheel for a variation to an approved design.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |

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| Reference / Paragraph No.                     | Current                                                                                                                                                                                                                                                                                                                                                                                  | Correction                                                                                                                                                                                                                                                                                                                                                                                                      |
|-----------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Second report paragraph 2.14.8.8              | And on the 26 March 2016, Mr Viriot emailed Mr Pannell copying in Mr Alhabshi. <i>“Nice -we <b>cold</b> connect these rooms on the top floor to create a VVIP suite.”</i>                                                                                                                                                                                                                | Typo: And on the 26 March 2016, Mr Viriot emailed Mr Pannell copying in Mr Alhabshi. <i>“Nice -we <b>could</b> connect these rooms on the top floor to create a VVIP suite.”</i>                                                                                                                                                                                                                                |
| Second report paragraph 2.14.12               | As I highlighted in my first report, the input by a client and or end user is essential on the majority of projects and detailed input and review of proposals is to be expected. I note that Mr Smith in his supplementary report at paragraph 5.1.5 says he <b>agree</b> with this paragraph in my first report.                                                                       | Typo: As I highlighted in my first report, the input by a client and or end user is essential on the majority of projects and detailed input and review of proposals is to be expected. I note that Mr Smith in his supplementary report at paragraph 5.1.5 says he <b>agrees</b> with this paragraph in my first report.                                                                                       |
| Second report paragraph 4.5.1, first sentence | As I explained above, each discipline in practice <b>in</b> not weighted equally...                                                                                                                                                                                                                                                                                                      | Typo: As I explained above, each discipline in practice <b>is</b> not weighted equally...                                                                                                                                                                                                                                                                                                                       |
| Second report paragraph 4.6.3                 | The D&B Contract design deliverables as well as architecture also refer to work items from other disciplines. In this second assessment I have sampled and assessed the AAEC / PRED design drawings and documents and also considered whether other deliverable items have been produced. Note I have not considered the quality of the work of other disciplines. Using this method the | Typo / clerical error: The D&B Contract design deliverables as well as architecture also refer to work items from other disciplines. In this second assessment I have sampled and assessed the AAEC / PRED design drawings and documents and also considered whether other deliverable items have been produced. Note I have not considered the quality of the work of other disciplines. Using this method the |

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|-------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                                                                                                                           | overall percentage complete is in my view is around <b>17%</b> . This is based on equal weighting of each listed as deliverable. From information I have seen a number of the items listed in the contract do not appear to have been produced. | overall percentage complete is in my view is around <b>10.5%</b> . This is based on equal weighting of each listed as deliverable. From information I have seen a number of the items listed in the contract do not appear to have been produced. |
| Second report paragraph 4.7.1 Table 15 column "2 All D&B deliverables (not weighted)" Row: "D&B Stage 2: Schematic Design (RIBA Stage 3)" | 5%                                                                                                                                                                                                                                              | Typo / clerical error: <b>10%</b>                                                                                                                                                                                                                 |
| Second report paragraph 4.7.1 Table 15 column "2 All D&B deliverables (not weighted)"                                                     | <b>Total not applicable</b>                                                                                                                                                                                                                     | Correction: <del>Total not applicable</del> <b>10.5% (average of D&amp;B Stages 1 to 4)</b><br><br>Note: Please see revised Table 15 at the end of this errata sheet.                                                                             |

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|---------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Row "Overall Total"                                                                                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| Second report paragraph 4.7.1 Table 15 column "3 – All deliverables where the main disciplines are weighted higher" | Total not applicable                                                                                                                                                                                                                                                                                                                                                                                                                                                    | Correction: <del>Total not applicable</del> 24.4% (average of D&B Stages 1 to 4)<br><br>Note: Please see revised Table 15 at the end of this errata sheet.                                                                                                                                                                                                                                                                                                                           |
| Joint Architect expert statement item 5.11, page 19, Mr Mark Phillips' column                                       | In my view in terms of the architecture component alone this was well developed at D&B Stage 1 (RIBA Stage 2) – approximately 67% complete. Architecture work had started on the D&B Stage 2(RIBA Stage 3) architecture design was approximately 23% complete. Architecture design work at D&B stage 3 (RIBA stage 4) and D&B Stage 4 (RIBA Stage 5) was more limited and based on what I have seen a significant proportion of the D&B deliverables were not produced. | Correction: In my view in terms of the architecture component alone this was well developed at D&B Stage 1 (RIBA Stage 2) – approximately 84% complete. Architecture work had started on the D&B Stage 2 (RIBA Stage 3) architecture design was approximately 23% complete. Architecture design work at D&B stage 3 (RIBA stage 4) and D&B Stage 4 (RIBA Stage 5) was more limited and based on what I have seen a significant proportion of the D&B deliverables were not produced. |
| Joint Architect expert                                                                                              | The AAEC architecture design alone, complete by stage in my view is approximately:                                                                                                                                                                                                                                                                                                                                                                                      | Correction: <del>The AAEC architecture design alone, complete by stage in my view is approximately:</del>                                                                                                                                                                                                                                                                                                                                                                            |

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|---------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| statement, item 5.13, page 19, Mr Mark Phillips' column | <p>D&amp;B stage 1 Concept Design (RIBA Stage 2): 67%</p> <p>D&amp;B Stage 2 Schematic Design (RIBA Stage 3): 23%</p> <p>D&amp;B Stage 3 Detailed Design (RIBA Stage 4): 5%</p> <p>D&amp;B Stage 4 Construction RIBA Stage 5) 2.5% nominal allowance (based on work undertaken from the earlier stages forming the basis for this deliverable)</p> | <p><b>My assessment no. 3 – Approximate percentage complete by stage for all deliverables where the main disciplines (Architecture / Interior Design, M&amp;E &amp; Structural) are weighted higher:</b></p> <p>D&amp;B stage 1 Concept Design (RIBA Stage 2): 67%</p> <p>D&amp;B Stage 2 Schematic Design (RIBA Stage 3): 23%</p> <p>D&amp;B Stage 3 Detailed Design (RIBA Stage 4): 5%</p> <p>D&amp;B Stage 4 Construction (RIBA Stage 5) 2.5% nominal allowance (based on work undertaken from the earlier stages forming the basis for this deliverable)</p> |



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**{Phillips2} Revised Table 15. Mr Phillips percentage complete stage assessments**

| D&B Contract                                  | 1 - Architecture alone | 2 - All D&B deliverables (not weighted)                                 | 3 – All deliverables where the main disciplines are weighted higher     | 4 - All deliverables aggregated & weighted by Stage using RIBA % figures | 5 – All deliverables aggregated and weighted by Stage using Mr Saxena % split |
|-----------------------------------------------|------------------------|-------------------------------------------------------------------------|-------------------------------------------------------------------------|--------------------------------------------------------------------------|-------------------------------------------------------------------------------|
| D&B Stage 1: Concept Design (RIBA Stage 2)    | 84% complete           | 31%                                                                     | 67%                                                                     | 11.8%                                                                    | 20.2%                                                                         |
| D&B Stage 2: Schematic Design ( RIBA Stage 3) | 23% complete           | 10%                                                                     | 23%                                                                     | 4.1%                                                                     | 7%                                                                            |
| D&B Stage 3: Detailed Design ( RIBA Stage 4)  | 11% complete           | 1%                                                                      | 5%                                                                      | 1.6%                                                                     | 1.8%                                                                          |
| D&B Stage 4: Construction (RIBA Stage 5)      | 5.5% complete          | 0%                                                                      | 2.5% (nominal)                                                          | 0.8%                                                                     | NA                                                                            |
| Overall Totals                                | 24.3% (stage weighted) | <del>Total not applicable</del><br>10.5% (average of D&B Stages 1 to 4) | <del>Total not applicable</del><br>24.4% (average of D&B Stages 1 to 4) | 18.2                                                                     | 29.1%                                                                         |